C/M Motilal Memorial Inter College ... vs State Of U.P. And Others on 12 August, 2010

Bench: Ashok Bhushan, Virendra Kumar Dixit

```
Court No. - 35
Case :- WRIT - C No. - 46790 of 2010
Petitioner :- C/M Motilal Memorial Inter College Hasanpur And
Anr.
Respondent :- State Of U.P. And Others
Petitioner Counsel :- S.R. Verma,Kansh Verma
Respondent Counsel :- C.S.C.
Hon'ble Ashok Bhushan,J.
```

Hon'ble Virendra Kumar Dixit,J.

Heard Sri S.R. Verma, learned counsel for the petitioners and Sri Madan Mohan, learned counsel for the respondents.

By this writ petition, petitioners have prayed for quashing the order dated 22.12.2009 passed by the State Government by which order the representation of the petitioners dated 10.5.2004 has been rejected. The land acquisition proceedings were held in the year 1980 by U.P. Avas Evam Vikas Parishad in which plots no. 72 and 74 were acquired. Petitioners who were owner of the said plot filed a writ petition being Writ Petition No. 16377 of 2004 claiming that the said plot be exempted from acquisition. This Court disposed of the writ petition directing the State Government to consider the representation in pursuance of the order of this Court. The State Government has passed the impugned order rejecting the representation, thus, refusing the prayer of the petitioners to exempt the land which has been acquired.

Sri S.R. Verma, learned counsel for the petitioners challenging the order contended that petitioners continued to be in possession of the land and the recommendations were made in favour of the petitioners by the District Administration for exempting the land which has not been considered. He submits that possession means actual physical possession and the State Government has violated the order of this Court, since the recommendation which were in favour of the petitioner has not been considered.

We have considered the submissions made by the learned counsel for the parties and perused the record.

There is no dispute that acquisition proceedings were held in which plot nos. 72 and 74 were acquired. The petitioners came before this Court in the year 2004 with a prayer for exemption of the land under Section 48 of the Land Acquisition Act which empowers the State Government to exempt any land from acquisition. Section 48 of the Land Acquisition Act, 1894 is quoted below:

> "48. Completion of acquisition not compulsory, but compensation to be awarded when not completed.-(1) Except in the case provided for in section 36, the Government shall be at liberty to withdraw from the acquisition of any land of which possession has not been taken. (2) Whenever the Government withdraws from any such acquisition, the Collector shall determine the amount of compensation due for the damage suffered by the owner in consequence of the notice or of any proceedings thereunder, and shall pay such amount to the person interested, together with all costs reasonably incurred by him in the prosecution of the proceedings under this act relating to the said land. (3) The provisions of Part III of this Act shall apply, so far as may be, to the determination of the compensation payable under this section"

The State Government in the impugned order has recorded finding that possession of the said plot nos. 72 and 74 were taken on 18.9.1981 and 15.5.1982 by U.P. Avas Vikas Parishad, hence under Section 48 (1) there is no ground for exempting the land from acquisition.

The submission which has been pressed by the learned counsel for the petitioners is that institution was existing and possession was never taken from the petitioners' institution, hence, the State Government committed error in passing the order. The copy of the registration of the society has been filed by the petitioner as Annexure no. 2 to the writ petition which indicates that society was registered on 29.7.1982. From the copy of the letter which has been filed as Annexure 3, it is clear that temporary recognition from Class I to V was granted on 1.8.1985. The specific finding has been recorded by the State Government that the possession was taken on 18.9.1991 and 15.5.1982. Recommendations which are claimed by the petitioners in their favour were the recommendation of the year 2002-2003 and thereafter, the acquisition was completed and possession was taken in the year 1981-

82. Any subsequent recognition or subsequent recommendations in favour of the petitioners that they are utilizing plot no. 72 as play ground and plot no. 74 as institution has no effect on the completed acquisition.

Section 48 of the Land Acquisition Act is an enabling provision which empowers the State Government to exempt any land from acquisition of which possession has not been taken. Possession having been taken in the year 1981-1982 by the U.P. Avas Vikas Parishad as has been held by the State Government, Section 48 (1) was clearly not applicable and no error has been committed by the State Government in rejecting the representation of the petitioners for withdrawing the land from the acquisition. Much emphasis has been laid by the learned counsel for the petitioners that recommendations which were made in the year 2002 clearly indicates that the aforesaid plots were being used by the institution. Any illegal continuance of possession by land owners whose land has been acquired and possession taken does not improve the rights of the petitioners nor any such illegal possession will defeat the provisions of Land Acquisition Act, 1984. The submission of the petitioners that the State Government has violated the order of the High Court also cannot be accepted. In pursuance of the order of the High Court, the State Government considered the representation of the petitioners and has also referred the recommendations in paragraph 3 of the order but the State government has refused to accept the recommendations to

withdraw the land from acquisition.

We do not find any such error in the order of the State Government which may warrant any interference by this Court.

The writ Petition lacks merit and is dismissed.

Learned counsel for the petitioner contends that on plot no. 74 the building of institution is standing. The land having been acquired and the State Government having refused to withdraw the land from acquisition, it is not for this Court to issue any directions. However, it is open for the petitioners to approach the U.P. Avas Evam Vikas Parishad for purchase of land on any other kind of settlement.

Order Date :- 12.8.2010 Sandeep